

THIRD AMENDMENT TO LEASE AGREEMENT

This THIRD AMENDMENT TO LEASE AGREEMENT (this "**Amendment**") is made and entered into as of April 1, 2021 (the "**Effective Date**"), by and between Ranger SA-TX LP, a Delaware limited partnership, a successor in interest G&I VII O'Connor Road LP ("**Landlord**"), and TDIndustries, Inc., a Texas corporation ("**Tenant**").

BACKGROUND:

- A. Landlord and Tenant are parties to that Lease Agreement dated February 22, 1999 (as amended by that Renewal Letter dated January 22, 2004, that Renewal Letter dated July 1, 2009, that First Amendment to Lease Agreement dated August 25, 2014, and that Second Amendment to Lease Agreement dated September 20, 2017, the "**Lease**"), pursuant to which Landlord is currently leasing to Tenant approximately 20,179 square feet of Rentable Area (the "**Original Premises**") in Building A (the "**Old Building**") known by street address as 12700 O'Connor Road, San Antonio, Texas, being a part of the Project commonly known as O'Connor Road Business Center (the "**Project**").
- B. Landlord and Tenant desire to amend the Lease to, among other things, expand the Original Premises.

AGREEMENT:

NOW, THEREFORE, in consideration of the foregoing, and for other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the parties agree as follows:

1. **Capitalized Terms.** All capitalized terms which are not otherwise defined herein shall have the meaning set forth in the Lease.
2. **Expansion.** The Lease is amended to provide that as of April 1, 2021 (the "**Expansion Effective Date**"), the Original Premises are expanded to include Suite 12766 in Building C (the "**New Building**") depicted on **Attachment A** attached hereto (the "**Expansion Space**"; together with the Original Premises, the "**Premises**"), thereby enlarging the Original Premises by approximately 6,002 square feet of Rentable Area, that is, from approximately 20,179 square feet of Rentable Area to approximately 26,181 square feet of Rentable Area. Landlord and Tenant agree that as of the Expansion Effective Date, the Premises will contain approximately 26,181 square feet of Rentable Area. On the Expansion Effective Date, all references to the Premises in the Lease shall thereafter refer to the Original Premises as expanded hereby, and **Exhibit B-1** to the Lease is amended to include the Expansion Space as described on **Attachment A** hereto.
3. **Acceptance of Expansion Space.** Tenant's occupancy of the Expansion Space is conclusive evidence that Tenant: (A) accepts the Expansion Space as suitable for the purposes for which it is leased; (B) accepts the Expansion Space and the Project as being in a good and satisfactory condition; (C) waives any defects in the Expansion Space and the Project; and (D) agrees that the square feet numbers specified in Paragraph 2 of this Amendment are binding and conclusive for all purposes under the Lease.
4. **Lease Term.** The Lease Term of the Lease with respect to the Expansion Space shall be coterminous with the Term for the Original Premises, i.e., commencing on the Expansion Effective Date and expiring on December 31, 2027 (the "**Expiration Date**").

5. **Base Rent.** From the Effective Date through the Expiration Date, Tenant shall continue to pay monthly Base Rent for the Original Premises as set forth in the Lease. From the Expansion Effective Date through the Expiration Date, the monthly Base Rent payable for the Expansion Space under the Lease as follows:

<u>Period</u>	<u>Annual Base Rent per Square Foot</u>	<u>Monthly Base Rent</u>
04/01/21 – 05/31/21	\$0.00	\$0.00
06/01/21 – 05/31/22	\$7.25	\$3,626.21
06/01/22 – 05/31/23	\$7.40	\$3,701.23
06/01/23 – 05/31/24	\$7.55	\$3,776.26
06/01/24 – 05/31/25	\$7.70	\$3,851.28
06/01/25 – 05/31/26	\$7.85	\$3,926.31
06/01/26 – 05/31/27	\$8.00	\$4,001.33
06/01/27 – 12/31/27	\$8.15	\$4,076.36

6. **Additional Rent; Tenant's Prorata Share.** Tenant shall continue to pay all other sums due and owing under the Lease, including without limitation utilities and Tenant's Prorata Share of Operating Expense Rental, in accordance with the terms of the Lease as amended hereby. Effective as of the Expansion Effective Date, Tenant's Prorata Share of the Project shall increase from 13.44% to 17.44%, Tenant's Prorata Share of the Old Building shall remain 33.61%, and Tenant's Prorata Share of the New Building shall be 15.20%. Notwithstanding the foregoing, Tenant shall not be required to pay Tenant's Prorata Share of Operating Expense Rental during the months of April 2021 and May 2021 for the Expansion Space. For purposes of clarity, Tenant shall be required to pay Tenant's Prorata Share of Operating Expense Rental during April 2021 and May 2021 for the Original Premises.
7. **Acceptance of Premises.** Tenant accepts the Premises in their "**AS-IS**" condition and Landlord shall have no obligation to improve, repair, restore or refurbish the Premises except as otherwise specifically provided in the Lease and this Amendment. Tenant acknowledges that neither Landlord nor any agent of Landlord has made any representation or warranty, except as otherwise expressly provided in this Amendment, with respect to the Premises or any other portion of the Project including, without limitation, any representation or warranty with respect to the suitability or fitness of the Premises or any other portion of the Project for the conduct of Tenant's business.
8. **Early Access of Expansion Space.** Tenant acknowledges and agrees that the Expansion Space is currently occupied by Marc Jones Construction, LLC, a Louisiana limited liability company, doing business as Sunpro Solar ("**Sunpro**"). Upon (1) the execution of this Amendment and (2) Tenant's delivery to Landlord of (i) a signed agreement between Sunpro and Tenant pursuant to which Sunpro grants Tenant a temporary license to use the Expansion Space prior to the expiration of Sunpro's lease and (ii) reasonably satisfactory evidence of Tenant's addition of the Expansion Space to Tenant's existing insurance policies as provided under the Lease, Tenant shall have the right, at its sole risk of liability and subject to all of the terms of this Lease, except for the obligation to pay Base Rental or Tenant's Prorata Share of Operating Expenses for the Expansion Space, to enter the Expansion Space prior to the Expansion Effective Date for the sole and limited purpose of performing installation of Tenant's equipment, data cabling and fixtures and

otherwise preparing the Expansion Space for Tenant's occupancy. Tenant shall coordinate with Landlord's property manager prior to such early access so that's Tenant's right of entry does not interfere with Landlord's operations or Landlord's completion of the Work.

9. Tenant Improvements. Landlord agrees to provide Tenant with an allowance of \$12,004.00 for costs incurred in connection with renovations to the Expansion Space. The Work will be performed and the allowance applied in accordance with **Attachment B** attached to this Amendment. Tenant acknowledges that Landlord may perform the Work in the Expansion Space during normal business hours following the Expansion Effective Date. Landlord and Tenant agree to cooperate with each other in order to enable the Work to be performed in a timely manner and with as little inconvenience to the operation of Tenant's business as is reasonably possible. Notwithstanding anything herein to the contrary, any inconvenience suffered by Tenant during the performance thereof shall not subject Landlord to any liability for any loss or damage resulting therefrom or entitle Tenant to any credit, abatement or adjustment of rent or other sums payable under the Lease, as amended hereby.
10. Address for Landlord. As of the date of this Amendment, all notices to be provided to Landlord under this Amendment shall be sent to the following addresses:

c/o Stream Realty Partners – Central Texas, L.P.
100 NE Loop 410, Suite 1500
San Antonio, Texas 78216

with copy to:

c/o DRA Advisors LLC
575 Fifth Avenue (38th Floor)
New York, New York 10017
Attn: Asset Management
11. Rent Payment Address. As of the date of this Amendment, all sums payable by Tenant under the Lease shall be sent to the following address, as applicable:

US Mail:
Ranger SA- TX LP
PO Box 841554
Dallas, TX 75284-1554

Courier Delivery:
Bank of America Lockbox Services
Lockbox 841554
1950 N. Stemmons Freeway
Suite #5010
Dallas, TX 75207
12. OFAC. Tenant represents and warrants to Landlord that Tenant is currently in compliance with, and Tenant further covenants to Landlord that Tenant shall at all times during the Lease Term (including any extension thereof) remain in compliance with, the regulations

of the Office of Foreign Assets Control ("**OFAC**") of the U.S. Department of Treasury (including those named on OFAC's Specially Designated Nationals and Blocked Persons List) and any statute, executive order (including, but not limited to, Executive Order 13224, dated September 24, 2001 and entitled "Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism"), or other governmental, regulatory, or administrative action relating thereto.

13. Brokerage. Neither Landlord nor Tenant has dealt with any broker or agent in connection with the negotiation or execution of this Amendment, other than Stream Realty Partners – Central Texas, L.P., representing Landlord, and Providence Commercial Real Estate, representing Tenant (together, the "**Brokers**"), whose commissions shall be paid by Landlord pursuant to separate written agreements. Tenant and Landlord shall each indemnify, defend and hold harmless the other against all costs, expenses, attorneys' fees, liens and other liability for commissions or other compensation claimed by any broker or agent, other than the Brokers, claiming the same by, through, or under the indemnifying party.
14. WAIVER OF JURY TRIAL. TO THE MAXIMUM EXTENT PERMITTED BY LAW, LANDLORD AND TENANT EACH WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY LITIGATION OR TO HAVE A JURY PARTICIPATE IN RESOLVING ANY DISPUTE ARISING OUT OF OR WITH RESPECT TO THE LEASE OR ANY OTHER INSTRUMENT, DOCUMENT OR AGREEMENT EXECUTED OR DELIVERED IN CONNECTION HERewith OR THE TRANSACTIONS RELATED HERETO.
15. Governing Law. The Lease shall be governed by and construed in accordance with the laws of the state in which the Premises are located.
16. Recordation of Lease. Tenant shall not record the Lease or any memorandum of the Lease without the prior written consent of Landlord, which consent may be withheld or denied in the sole and absolute discretion of Landlord, and any recordation by Tenant shall be a material breach of the Lease. Tenant grants to Landlord a power of attorney to execute and record a release releasing any such recorded instrument of record that was recorded without the prior written consent of Landlord.
17. Calculation of Charges. Landlord and Tenant agree that each provision of the Lease for determining charges and amounts payable by Tenant (including provisions regarding Tenant's Prorata Share of Operating Expense Rental) is commercially reasonable and, as to each such charge or amount, constitutes a statement of the amount of the charge or a method by which the charge is to be computed for purposes of Section 93.012 of the Texas Property Code.
18. No Waiver. Neither acceptance of rent (or any portion thereof) or any other sums payable by Landlord or Tenant hereunder (or any portion thereof) by Landlord or Tenant nor failure by Landlord or Tenant to complain of any action, non-action or default of the other shall constitute a waiver as to any breach of any covenant or condition of Tenant contained herein nor a waiver of the rights of any party hereunder. Waiver of any default shall not constitute a waiver of any prior or subsequent default under the Lease. No right, remedy, covenant, duty or obligation hereunder shall be deemed waived unless such waiver be in writing.

19. No Offsets. Tenant hereby represents to Landlord that to the best of Tenant's knowledge, as of the date of this Amendment, Tenant has no defenses to or offsets against the full and timely payment and performance of each and every covenant and obligation required to be performed by Tenant under the terms of the Lease.
20. Conflicts. The terms of this Amendment prevail if there is a conflict with the terms of the Lease.
21. Headings. The headings or captions of the paragraphs in this Amendment are for convenience only and shall not act and shall not be implied to act to limit or expand the construction and intent of the contents of the respective paragraph.
22. Binding Effect. This Amendment is binding upon and shall inure to the benefit of the parties and their respective successors and assigns (but this reference to assigns shall not be deemed to act as a consent to an assignment by Tenant).
23. Ratification. The Lease, as amended and modified hereby, is ratified and confirmed by the parties as being in full force and effect.
24. Counterparts. This Amendment may be executed in multiple counterparts, each of which shall constitute an original, but all of which shall constitute one document. This Amendment may be executed by electronic signature, which shall be considered as an original signature for all purposes and shall have the same force and effect as an original signature. For these purposes, "electronic signature" shall mean electronically scanned and transmitted versions (e.g., via pdf file) of an original signature, signatures electronically inserted and verified by software such as Adobe Sign, or faxed versions of an original signature.
25. Submission of Amendment Not Offer. The submission by Landlord to Tenant of this Amendment for Tenant's consideration shall have no binding force or effect, and shall not confer any rights upon Tenant or impose any obligations upon Landlord irrespective of any reliance thereon by Tenant, change of position, partial performance, or any correspondence among either party or its authorized representatives. This Amendment is effective and binding on Landlord only upon the execution and delivery of this Amendment by Landlord and Tenant.

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EXECUTED as of the date first above written.

LANDLORD:

Ranger SA-TX LP,
a Delaware limited partnership

By: Ranger H&SA-TX GP LLC,
a Delaware limited liability company,
its general partner

By: 
David Gray (Apr 1, 2021 13:43 EDT)
Name: David Gray
Title: Vice President

TENANT:

TDIndustries, Inc.,
a Texas corporation

By: 
Justin Beard
Name: Justin Beard
Title: Vice President

ATTACHMENT A



ATTACHMENT B

TENANT FINISH-WORK: WORK OF LIMITED SCOPE (NO PLANS) (Landlord Performs the Work)

1. **Acceptance of Expansion Space.** Except as set forth in this **Attachment B**, Tenant accepts the Expansion Space in their "**AS-IS**" condition on the date that this Amendment is entered into.

2. **Scope of Work.** Landlord shall perform the cosmetic, non-structural installations for the Expansion Space requested by Tenant, using Building-standard materials and Building-standard quantities selected by Tenant, in accordance with any design or space plans required by Landlord (the "**Work**"). Tenant shall submit the full scope of the Work for Landlord's approval prior to its commencement. Within three business days after the date of this Amendment, Tenant shall select all Building-standard materials to be incorporated into the Work and give written notice of such selection to Landlord.

3. **Cost of the Work.** The entire cost of performing the Work (including design of and space planning for the Work and preparation of any working drawings and "as-built" plans, costs of construction labor and materials, related taxes and insurance costs, licenses, permits, certifications, surveys and other approvals required by law, and the construction supervision fee referenced in Section 5 of this **Attachment B**, all of which costs are herein collectively called the "**Total Construction Costs**") in excess of the Construction Allowance (hereinafter defined) shall be paid by Tenant. Prior to Landlord's commencement of the Work, Tenant shall pay to Landlord an amount equal to the Total Construction Costs (as adjusted for any approved changes to the Work), less the amount of the Construction Allowance. In the event of default of payment of such excess costs, Landlord (in addition to all other remedies) shall have the same rights as for an event of default under the Lease.

4. **Construction Allowance.** Landlord shall provide to Tenant a construction allowance not to exceed \$2.00 per rentable square foot in the Expansion Space (\$12,004.00) (the "**Construction Allowance**") to be applied toward the Total Construction Costs, as adjusted for any changes to the Work. The Construction Allowance shall not be disbursed to Tenant in cash, but shall be applied by Landlord to the payment of the Total Construction Costs, if, as, and when the cost of the Work is actually incurred and paid by Landlord. The Construction Allowance must be used (that is, the Work must be fully complete and the Construction Allowance disbursed) within six months following the Expansion Effective Date or shall be deemed forfeited with no further obligation by Landlord with respect thereto, time being of the essence with respect thereto.

5. **Construction Management.** Landlord or its affiliate or agent shall supervise the Work, make disbursements required to be made to the contractor, and act as a liaison between the contractor and Tenant and coordinate the relationship between the Work, the Building and the Building's systems. In consideration for Landlord's construction supervision services, Tenant shall pay to Landlord a construction supervision fee equal to five percent of the Total Construction Costs.

Certificate Of Completion

Envelope Id: 9E174A4F2633468EAC471BD1A2B144B4

Status: Delivered

Subject: Third Amendment to Lease Agreement

Source Envelope: D4514A4A842746E491ACB12180F4CCF0

Document Pages: 8

Signatures: 0

Envelope Originator:

Certificate Pages: 4

Initials: 0

Trish Sanchez

AutoNav: Enabled

13850 Diplomat Dr

Envelopeld Stamping: Enabled

Dallas, TX 75234-8812

Time Zone: (UTC-06:00) Central Time (US & Canada)

Trish.Sanchez@tdindustries.com

IP Address: 12.217.1.114

Record Tracking

Status: Original

Holder: Trish Sanchez

Location: DocuSign

3/29/2021 10:54:57 AM

Trish.Sanchez@tdindustries.com

Signer Events

Signature

Timestamp

Greg Bailey

Sent: 3/29/2021 10:57:20 AM

greg.bailey@tdindustries.com

Viewed: 3/29/2021 12:26:19 PM

Security Level: Email, Account Authentication
(None)

Electronic Record and Signature Disclosure:

Accepted: 3/9/2018 1:35:06 PM

ID: b4dfffd14-34a9-4900-94d9-818f0125ba84

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Witness Events

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Timestamp

Notary Events

Signature

Timestamp

Envelope Summary Events

Status

Timestamps

Envelope Sent

Hashed/Encrypted

3/29/2021 10:57:20 AM

Certified Delivered

Security Checked

3/29/2021 12:26:19 PM

Payment Events

Status

Timestamps

Electronic Record and Signature Disclosure

ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, TDIndustries, Inc (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through your DocuSign, Inc. (DocuSign) Express user account. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to these terms and conditions, please confirm your agreement by clicking the 'I agree' button at the bottom of this document.

Getting paper copies

At any time, you may request from us a paper copy of any record provided or made available electronically to you by us. For such copies, as long as you are an authorized user of the DocuSign system you will have the ability to download and print any documents we send to you through your DocuSign user account for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you paper copies of any such documents from our office to you, you will be charged a \$0.00 per-page fee. You may request delivery of such paper copies from us by following the procedure described below.

Withdrawing your consent

If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. To indicate to us that you are changing your mind, you must withdraw your consent using the DocuSign 'Withdraw Consent' form on the signing page of your DocuSign account. This will indicate to us that you have withdrawn your consent to receive required notices and disclosures electronically from us and you will no longer be able to use your DocuSign Express user account to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through your DocuSign user account all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact TDIndustries, Inc:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:

To contact us by email send messages to: rosie.nicholson@tdindustries.com

To advise TDIndustries, Inc of your new e-mail address

To let us know of a change in your e-mail address where we should send notices and disclosures electronically to you, you must send an email message to us at rosie.nicholson@tdindustries.com and in the body of such request you must state: your previous e-mail address, your new e-mail address. We do not require any other information from you to change your email address..

In addition, you must notify DocuSign, Inc to arrange for your new email address to be reflected in your DocuSign account by following the process for changing e-mail in DocuSign.

To request paper copies from TDIndustries, Inc

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an e-mail to rosie.nicholson@tdindustries.com and in the body of such request you must state your e-mail address, full name, US Postal address, and telephone number. We will bill you for any fees at that time, if any.

To withdraw your consent with TDIndustries, Inc

To inform us that you no longer want to receive future notices and disclosures in electronic format you may:

- i. decline to sign a document from within your DocuSign account, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or you may;
- ii. send us an e-mail to rosie.nicholson@tdindustries.com and in the body of such request you must state your e-mail, full name, US Postal Address, telephone number, and account number. We do not need any other information from you to withdraw consent.. The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

Operating Systems:	Windows2000? or WindowsXP?
Browsers (for SENDERS):	Internet Explorer 6.0? or above
Browsers (for SIGNERS):	Internet Explorer 6.0?, Mozilla FireFox 1.0, NetScape 7.2 (or above)
Email:	Access to a valid email account
Screen Resolution:	800 x 600 minimum
Enabled Security Settings:	•Allow per session cookies •Users accessing the internet behind a Proxy Server must enable HTTP 1.1 settings via proxy connection

** These minimum requirements are subject to change. If these requirements change, we will provide you with an email message at the email address we have on file for you at that time providing you with the revised hardware and software requirements, at which time you will have the right to withdraw your consent.

Acknowledging your access and consent to receive materials electronically

To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please verify that you were able to read this electronic disclosure and that you also were able to print on paper or electronically save this page for your future reference and access or that you were able to e-mail this disclosure and consent to an address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format on the terms and conditions described above, please let us know by clicking the 'I agree' button below.

By checking the 'I Agree' box, I confirm that:

- I can access and read this Electronic CONSENT TO ELECTRONIC RECEIPT OF ELECTRONIC RECORD AND SIGNATURE DISCLOSURES document; and
- I can print on paper the disclosure or save or send the disclosure to a place where I can print it, for future reference and access; and
- Until or unless I notify TDIndustries, Inc as described above, I consent to receive from exclusively through electronic means all notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to me by TDIndustries, Inc during the course of my relationship with you.

TD Industries - Third Amendment to Lease Agreement dated 4.1.2021

Final Audit Report

2021-04-01

Created:	2021-04-01
By:	Maria Rodriguez (mrodriguez@draadvisors.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAACYA7tFQh9cOV5zhmwV2gY23-igV44JGZ

"TD Industries - Third Amendment to Lease Agreement dated 4.1.2021" History

-  Document created by Maria Rodriguez (mrodriguez@draadvisors.com)
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-  Document emailed to David Gray (dgray@draadvisors.com) for signature
2021-04-01 - 5:42:43 PM GMT
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2021-04-01 - 5:42:53 PM GMT- IP address: 160.72.133.82
-  Document e-signed by David Gray (dgray@draadvisors.com)
Signature Date: 2021-04-01 - 5:43:01 PM GMT - Time Source: server- IP address: 160.72.133.82
-  Agreement completed.
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